

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUPT051185: BEATRIZ P FLORES vs THOMAS A EDGERTON

07/16/2026 in Department 43

Motion for Summary Adjudication

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant Thomas A. Edgerton's Motion for Summary Adjudication

Tentative Ruling: Defendant Thomas A. Edgerton's Motion for Summary Adjudication as to the First Cause of Action (Breach of Contract); Third Cause of Action (Retaliation); and Fifth Cause of Action (Declaratory Relief) is GRANTED. After a contested trial on the merits in Unlawful Detainer case 2025CLUD051580, Commissioner Matthew R. Nemerson ruled that there was no five-year tenancy agreement between the parties who are at issue in this action and that Mr. Edgerton had not engaged in retaliatory eviction under Civil Code §1942.5.

Collateral estoppel, or issue preclusion, bars re-litigation of issues that were previously adjudicated in a prior proceeding. (*Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341.) The doctrine applies where (1) the issue is identical to that decided in a former proceeding, (2) the issue was actually litigated, (3) the issue was necessarily decided, (4) the decision is final and on the merits, and (5) the party against whom preclusion is asserted is the same. (*Ibid.*) Each of those factors are met here. A minute order is sufficiently a final decision on a matter for purposes of issue preclusion. (*Border Business Park, Inc. v. City of San Diego* (2006) 142 Cal.App.4th 1538, 1564)

Commissioner Nemerson's ruling after trial concerned the existence of a contractual agreement between the parties for a five-year tenancy and retaliation.

Plaintiff's argument that Defendant has failed to submit to a deposition or has not properly responded to discovery lacks merit. There have been no discovery motions filed relative to the discovery mentioned in Plaintiff's opposition and there is no explanation as to how the discovery in question would be relevant to this motion. Finally, and of greatest significance, the ruling in the unlawful detainer case could not be changed through discovery so the discovery argument is unequivocally unmeritorious.

Whether Defendant Edgerton made an actionable fraudulent promise was not at issue or addressed in the unlawful detainer trial. The Motion for Summary Adjudication as to the Second Cause of Action (Fraud) is DENIED.

Addressing Defendant Edgerton's Undisputed Material Facts:

Numbers 1, 3, 4, and 16 are undisputed.

Numbers 2, 5, 6, 9, 10, 11, 12, 13, 14 and 15 are disputed but established.

Numbers 7 and 8 are not material. For purposes of this motion, the fact that Plaintiff alleged a minimum of five years as opposed to exactly five years is immaterial.

Plaintiff's Additional UMF's do not create triable issues of fact and thus are not material.

Moving party shall prepare, circulate and file on order for the Court's signature consistent with the foregoing. Moving party shall also serve notice of the Court's ruling.